

WHO IS AFRAID OF POTA?

The Government moves to introduce a stricter anti-terror law but it is a political gamble

The UPA had always cold-shouldered reports the Veerappa Moily-headed Administrative Reforms Commission (ARC) churned out with regular frequency. But now, the Manmohan Singh Government has suddenly woken up to the political usefulness of the Commission's latest report, titled Combating Terrorism, and dusted it off during the week to anchor its plans to bring in a law to replace the Prevention of Terrorism Act, 2002 (commonly called POTA). Pushed to the wall by the demands by Opposition BJP for a better legal framework to combat terrorism and alarmed by the frequency and the timing of bomb blasts, the Congress is testing the waters for a new anti-terror law by showing sudden interest in Moily's how-to-do list, presented to Prime Minister Manmohan Singh three months ago. The Congress' initiative for the new law is coming amidst its fear of loosening political grip following recurring blasts across the country and the need to build a hasty defence against the BJP's allegations that it is soft on terror before it hits the streets for the general election campaign.

POTA was enacted by the BJP government to make provisions "for the prevention of" and "for dealing with" terrorist activities. Within a year, the Act came under attack by civil rights activists for its dubious human rights record and faced allegations from the Opposition Congress party that it was being used to fix political opponents. The Congress won electoral applause after it went on a campaign making the POTA repeal a priority with support of the civil society and minority-rights groups. In September 2004, Manmohan repealed POTA noting that "the intention of the government is to protect the rights of people vis-à-vis the misuse of POTA". The Government said that to fill the lacuna created due

to the repeal of the Act, "adequate" amendments were being brought to the Unlawful Activities (Prevention) Act, 1967 shifting the onus of proving the guilt of the accused to the prosecution. It also abandoned the POTA provision that allows the arrest, interrogation and detention of suspects for 30 days before production in a court of law. But there isn't much daylight between the BJP-piloted POTA and the Moily Commission's recommendations for the new law. The Moily Commission recommends stricter terms for granting bail, a clause which had come under attack during the POTA regime: "Where the public prosecutor opposes the bail application of ac-

cused to release on bail, no person accused of an offence punishable under act or any rule made there shall be released on bail unless courts are satisfied that there are grounds for believing that the accused is not guilty of committing such offence".

Moily is slouching towards a new theory and argues that a Review Commission would work as a safeguard by reviewing the case of all detenus periodically and advise prosecution on granting bail. Coming to haunt Moily are pithy sound bytes once offered by his Congress colleague Kapil Sibal in Parliament during introduction of POTA on inefficiency of review mechanism: "While the investigation is on, the Review Committee cannot

interfere because the investigation authority will say that the investigation is not complete. Once the court takes cognisance, the Review Committee cannot again come into the picture because the Review Committee cannot interfere with the cognisance of the court". The Congress can now only hope that it can get benefit of doubt it has denied to others.



NEW LAW: Moily gets his way

Caught between the BJP's accusations that it is "soft on terrorism," something it fears will hurt its Hindu vote, and its desire to regain the Muslim constituency, the Congress is now seriously considering introducing tougher anti-terror legal provisions. "It will not be a revival of POTA. The name has a certain stigma attached to it. Certain legal provisions may be introduced in the exist-

ing National Security Act (NSA) and the Unlawful Activities Prevention Act to deal with terrorism related cases," disclosed a senior law ministry official. The final decision would have to be cleared by the Cabinet. According to highly-placed sources, the push for tougher legal provisions to deal with terrorism came from the Prime Minister's Office. It was with the approval of

by Shafi Rahman